



AMERICAN SOCIETY FOR THE PREVENTION OF CRUELTY TO ANIMALS, PETITIONER v. COLOSSAL BIOSCIENCES INC., RESPONDENT

Justice Breyer delivered his opinion.

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Introduction and Facts

The constitutional question brought before the Court today by the American Society for the Prevention of Cruelty to Animals, or ASPCA, is whether or not genetically engineered "de-extincted" dire wolves monitored by Colossal Biosciences violate the Fifth Amendment's right to life, liberty, and the pursuit of happiness. The 5th Circuit Court of Appeals, which includes Texas, Louisiana, and Mississippi, ruled in favor of Colossal Biosciences. Because the Constitution does not explicitly uphold animal rights, and the civil rights of the People in the United States of America will not change, the ASPCA does not have a constitutional basis to sue Colossal.

Colossal Biosciences is a genetics company based in Dallas, Texas, dedicated to preserving animal species through "de-extinction," a process involving collecting DNA from a fossil or specimen and implanting it into an embryo to rebirth an extinct animal. Colossal has successfully used this process to hatch an artificial chick, raise woolly mice with mammoth genes, and raise three dire wolf pups- the subject of this case today. ASPCA sued Colossal Biosciences for two main reasons: the 90% embryo mortality rate in the dire wolf cloning process, and the allegedly inhumane aspect of the enclosed dire wolf enclosure.

Perspective and Precedent

I believe that the impact of laws on the public is what matters most in Supreme Court decisions. The Constitution's exact text isn't what matters in this case, but rather whether the civil representation of the public changes after a decision. This case must be viewed through a lens requiring consideration of real-world impact, not just constitutional meaning. Here, Colossal affects exactly **zero** American citizens. Even if the Constitution were considered by text, which many in this room prefer, the Fifth Amendment explicitly states that Life, Liberty, and the Pursuit of Happiness will not be deprived from people, therefore not applying to animals.

The Supreme Court has never accepted a case like today's from ASPCA. Both *Diamond v. Chakrabarty* and *Molecular Pathology v. Myriad Genetics* showed that a company can patent an artificially created biological life form- just not a naturally generated one. Therefore, Colossal's artificially generated life forms are the **property** of the company, not "**people**" who are given constitutional rights of any sort. Additionally, *Lujan v. Defenders of Wildlife* established that the ASPCA needed a concrete "injury-in-fact," or an issue directly affecting its organization, to sue Colossal Biosciences. Despite the fact that certain critics contend against certain surveillance and safety practices, Colossal Biosciences did not violate any major legal issues that are not pertinent to ASPCA's argument.

Critics of Colossal Bioscience's cloning methods, including ASPCA, argue that surrogate gray wolf mothers, cloning embryo destruction, and juvenile separation from cross-species mothers go against their ethical standards- and thus ASPCA has standing to sue. However, these are standard cloning industry methods, not unique to Colossal, and none of these methods violate constitutional standards. Even by pragmatic standards, Colossal's "possibly unethical" cloning methods don't impact any legal matters.

The Modern Dilemma

If we allow ASPCA to sue Colossal Biosciences over non-legal ethical concerns, it will create a slippery slope of nearly endless animal activist organizations suing over human rights for animals and embryos using non-legal ethical standing. The Supreme Court precedent would never permit giving rights to a human embryo (in abortion cases) or an animal (in wildlife cases), so why should the Supreme Court give rights to an **animal embryo**?

ASPCA's argument for improved conditions for dire wolves isn't just constitutionally flawed; the court precedents clearly show that the dire wolves are Colossal's artificially manufactured property. According to *Diamond v. Chakrabarty*, Colossal can keep the dire wolves as private, controlled property. If we ignore the fact that ASPCA has no legal precedent for a moment and only consider moral or ethical standing, it turns out that the three dire wolf pups being raised by Colossal are living in a massive 2,000-acre habitat in the Northern US, approved by American Humane, and kept safe from danger in the modern ecosystem.

Judicial Policy and Final Holding

If we, as a court, issue a majority opinion siding with ASPCA, catastrophic outcomes will ensue. Denying Colossal's right to genetic experimentation and de-extinction could lead to further legislation and activism supporting the extension of human privacy and freedom rights to animals. As a result, scientific efforts aimed at saving endangered species and reversing our society's pollutive impact on nature would come to a halt. Consequently, granting a few animal

species rights akin to those of American citizens would mean allowing thousands of other species to **become extinct**.

The lower court was correct in ASPCA v. Colossal. The ASPCA lacks the standing and legal grounds to initiate this lawsuit, and thus should not have petitioned the Supreme Court. While acknowledging the ASPCA's ongoing efforts to protect animal groups, which I respect, the present lawsuit over the welfare of merely three wolves does not grant certiorari by the highest court in the United States. Accordingly, I, Justice Stephen Breyer, affirm the lower court's decision and declare that Colossal Biosciences prevails in this case.